

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES	
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED (SEE ITEM 11)	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

Previous edition unusable

SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Continuation of Supplies or Services and Prices/Costs

Miscellaneous text in this section has been modified to:

MINIMUM AND MAXIMUM QUANTITIES (FFP, SINGLE AWARD IDIQ) (SEP 2015)

As referred to in paragraph (b) of the "Indefinite Quantity" clause of this contract, the total contract minimum quantity is a total of \$2,500.00 worth of orders at the contract unit price(s). The contract maximum quantity is a total of \$37,000,000.00.

LOCAL TEXT "UNLIQUIDATED OBLIGATIONS"

The Government intends to unilaterally deobligate any unliquidated obligations 90 days after each period of performance. Prior to doing so, the Contracting Officer (or Administrative Contracting Officer) will notify the contractor of the intended amount of deobligation and ask the contractor to confirm within one week that all invoices for the completed period of performance have been submitted and processed for payment (with the exception of any invoice for rate adjustment upon receipt of DCAA approved final rates for any cost-type CLINs or SLINs). Upon confirmation that all invoices have been submitted and processed for payment, or upon the contractor's failure to respond to the PCO/ACOs notification of intent to deobligate, the Contracting Officer or Administrative Contracting Officer will unilaterally deobligate the potential ULOs by reducing the funded amount to an amount equal to the contractors invoiced/paid amount for that contract period of performance.

Note: Reduction of cost-reimbursement CLINs or SLINs in accordance with the above DOES NOT change either party's obligations under a Final Invoice submitted upon DCMA establishing final rates for each CLIN and or SLIN.

Continuation of Inspection and Acceptance

Miscellaneous text in this section has been modified to:

QASP

Purpose: To ensure that the government has an effective and systematic method of surveillance for the services in the PWS. The QASP will be used primarily as a tool by the contractor and the government to verify that the contractor is performing all services required by the PWS in a timely, accurate and complete manner.

1. Critical performance processes and requirements. Critical to the performance of these services is the timely, accurate and thorough completion of all contract/task order requirements.
2. Quality Definitions.
 - a. Milestones. A milestone is any meeting, defined as part of a test design, test planning, modeling and simulation validation or test reporting process as outlined in references listed in section 13 of this document, or any Test and Evaluation (T&E) meeting outlined by a formal or informal T&E WIPT determination. Informal or intermediate milestones may also be established by the government at the discretion of the Operational Test Director (or similar government representative); this informal milestone may also be referred as a "deadline" or "due date" etc.
 - b. Deliverables.
 - i. Any test document or product considered to be the final test document meant for routing to signature by the government as outlined in Table 2-4 of the OPTEVFOR M-3980.2 series. This includes but is not limited to Integrated Evaluation Frameworks, Test Plans, and Test Report products. in accordance with the specific work statement for a program. The contractor retains responsibility for performing any work specified in the Statement of Work until the specific test document or product is signed by the appropriate authority.
 - ii. Any intermediate test document or product created or edited by the vendor that is not considered to be a T&E document, as defined in QASP paragraph 2.b.i, intended to be in support of a final document deliverable. This includes all read ahead material to support intermediate or final Mission Based Test Design, Test Planning, Test Reporting, or other efforts directed by the government in accordance with the specific work statement for a program.
 - iii. Any draft test document or product developed for collaboration with the government or T&E stakeholders for intermediate or final test documents that is not considered to be a T&E document, as defined in QASP paragraph 2.b.i or 2.b.ii, purposed to be in support of a final document deliverable.
 - c. Quality Scale. In general terms, comments regarding quality may be described in the following terms:
 - i. **Critical (C)** comments are provided because sections in the document appear to be or are potentially incorrect, incomplete, missing pertinent T&E information, or not in accordance with the prescribed applicable template. Critical comments preclude the test team from proceeding to meet the next scheduled milestone.
 - ii. **Substantive (S)** comments are provided because sections in the document appear to be or are potentially unnecessary, have minor incorrect, incomplete, misleading, confusing information, or inconsistencies with other sections that do not preclude the test team from proceeding to meet the next scheduled milestone.
 - iii. **Administrative (A)** comments are provided because sections in the document appear to contain typographical, formatting, or grammatical errors. Administrative comments do not preclude the test team from proceeding to meet the next scheduled milestone.
 - iv. The government designated representative shall qualify each comment (or group of comments) with its appropriate level of criticality (C, S, A) to support First Pass Yield (FPY) determinations, when appropriate.
3. Performance Standards

- a. Schedule - The due dates for deliverables and the actual accomplishment of the schedule will be assessed against original due dates and milestones established for the contract or task order(s).
- b. Performance Metric (Schedule). An accepted schedule metric of above 95 percent (>95%) FPY for delivery of all intermediate or final test document or products on time related to prescribed deadlines provided by the designated government representative. If the contractor does not provide a test document or product due to schedule slip by the contractor resulting in a missed deadline (termed here as a 'schedule defect'), it will result in a failure to meet the FPY performance metric.
- c. Timeliness of Deliverables.
- i. Intermediate Test Product Deadline. Delivery of all intermediate test product (i.e. read ahead material) shall be provided to the Warfare Division Section Head (or designated representative) for acceptance by the government in accordance with timelines outlined in the applicable published checklist, handbook, best practice, etc. These publications are posted to the OPTEVFOR SharePoint site (NIPR) or OT&E Reference Library folder or OT&E Production Library folder on the Y: drive (SIPR).
 - ii. Draft Test Product Collaboration. The contractor may submit draft or "working" versions of the intermediate test product to the Operational Test Director (OTD), Lead Test Engineer (LTE), etc. as required to enable collaboration, obtain early feedback, or facilitate efforts to resolve T&E issues or questions within the document. Review of a draft product shall not be considered as "Submission of Deliverables to the Government" and draft Test Product Collaboration shall not delay or disrupt required schedule of delivery for intermediate or final test product deadlines.
 - iii. Schedule Slip due to Government Induced Delays. Inherent to the acquisition process, a program may experience a schedule slip due to various factors. These "Government Induced Delays" may impact or affect the timelines for deliverables as outlined in the Statement of Work for each Task Order (TO). In the event of a Government Induced Delay, it is the responsibility of the OTD, Section Head, and contractor assigned to the specific TO, to alert the Warfare Division Deputy Director or their alternate at the soonest possible time. The OTD, Section Head, LTE and contractor shall assess the impact of the delay on schedule deadlines provided to the contractor. If the delay is significant enough to prevent the contractor from submitting deliverables on time, the OTD (or designated government representative) shall discuss the potential impact to the overall schedule with the Contracting Officer Representative (COR) and contractor to determine if a formal modification to the overall schedule with an updated schedule for deliverables (to include intermediate test products) is required.
 - iv. Schedule Slip due to Contractor Delays. If the contractor fails to submit deliverables to the government, not due to government induced delays or where an adjusted deadline has not been approved by the designated government representative, this will be considered a schedule slip due to contractor delays. Any unplanned schedule slip due to a contractor delay must be forecasted as soon as recognized to the government representative by the contractor to afford corrective mitigation to the acquisition schedule.
- d. Deliverables - The deliverables section required to be submitted will be assessed against the specifications for the deliverables detailed in the contract/task order(s) and the Quality Control Plan (QCP), if required by the contract, for the required content, quality, timeliness, and accuracy.
- i. Submission of Deliverables to the Government. All Deliverables listed will be delivered by the Contractor in accordance with the Quality Assurance Surveillance Plan (QASP). For determination of "**Timeliness**", the contractor shall submit deliverables via email to the OTD, Section Head, and other applicable recipients identified at time of task order award and/or during execution during the Period of Performance (PoP). Upon receipt, the Section Head will send an email to the Warfare Division Deputy Director facilitating the formal government's position for the respective product for timeliness and/or accuracy within 48 hours upon receipt of the deliverable. The Warfare Division Deputy Director or alternate will forward a copy of this email to the Contracting Officer's Representative (COR) and prime vendor representative for the TO as required; the email will become part of the COR folder for that respective TO.
 - ii. Government Induced Errors (GIE) after Contractor submission to the Government. A government induced error is defined as an error that was determined to be qualitatively or quantitatively incorrect from the original contractor's submission of that deliverable to the government. Any GIE identified shall not be counted as part of the First Pass Yield (FPY) as described in paragraph 3.e. of this document.
 - iii. Acceptance of Deliverables by the Government. Any test document, as outlined above in QASP paragraph 2.b.i, is accepted by the government when the specific test document or product is signed by the appropriate authority. Any intermediate deliverable, as outlined above in QASP paragraph 2.b.ii, is accepted by the government when the Section Head, OTC, or OTD (if delegated) has approved the deliverable to be issued as read ahead material for a test product

milestone meeting or document routing for signature. Acceptance by the government may be via memorandum, e-mail (preferred), or verbal statement (followed by an email). Acceptance by the government states it now has sole responsibility for that document.

e. Performance Standard for Acceptable Quality Level.

i. An accepted quality metric of above 95 percent (>95%) FPY is desired for delivery of all intermediate or final test document or products without administrative, substantive, or critical comments related to document quality (termed here as a 'quality defect'). This is also defined as 'No rework required'.

ii. FPY percentage is defined as **number of documents accepted** by the government for the first time for an intended purpose divided by the **total number of documents provided** to the government for the first time for an intended purpose, **multiplied by 100**. Draft test documents or products will not count towards FPY until formally submitted to the government for an intended purpose to meet intermediate or final test product milestones.

$$\text{FPY} = \frac{\text{number of documents accepted}}{\text{total number of documents provided}} \times 100$$

iii. Any comment related to the lack of specific System Under Test (SUT) or programmatic information required for a T&E document is not considered to be a quality defect.

iv. If, at any time, the FPY is below 85 percent (<85%), or the government perceives repetitive or consistently poor performance regardless of FPY metrics, the issue shall be referred to the COR for further action.

f. Past Performance - In addition to any schedule and deliverable aspects of performance discussed above, pursuant to FAR 42.15, the government will assess the contractor's record of conforming to contract requirements and to standards of good workmanship, the contractor's adherence to contract schedules including the administrative aspects of performance, the contractor's history of reasonable and cooperative behavior and commitment to customer satisfaction, and the contractor's business-like concern for the interest of the customer.

4. Surveillance methods: The primary methods of surveillance used to monitor performance of this contract will include, but not be limited to, random or planned sampling, periodic inspection, and validated customer complaints.

5. Performance Measurement: Performance will be measured in accordance with the following table:

Performance Element	Performance Requirement	Surveillance Method	Frequency	Acceptable Quality Level
Contract Deliverable A001	T&E Documents or Briefs	Periodic/ Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required
Contract Deliverable A002	Trip Report	Periodic/ Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required

Contract Deliverable A003	Monthly Status Report (MSR)	Periodic/ Customer Input	Monthly starting after the first month of contract award.	>95% of deliverables submitted timely and without rework required
Contract Deliverable A003	Financial Status Report	Periodic/ Customer Input	Monthly starting after the first month of contract award.	>95% of deliverables submitted timely and without rework required
Overall Contract Performance	Overall contract performance of sufficient quality to earn a minimum Satisfactory rating in the COR's annual report on contractor performance	Assessme nt by the COR	Annual or at completion of performance	All performance elements rated Satisfactory (or higher)
Invoicing	Invoices per contract procedures are timely and accurate.	Review and accep tance of the invoice	As specified in contract	100% accuracy
DFARS clause 252.239-7001, Information Assurance Contractor Training and Certification	100% compliance with the clause (As required)	100% sur veillance	As specified in DFARS clause 252.239-7001	100% compliance
FAR clause 52.222-50, Combating Trafficking in Persons	100% compliance with the clause	100% sur veillance	As specified in FAR clause 52.222-50	100% compliance

If performance is within acceptable levels, it will be considered to be satisfactory. If not, overall performance may be considered unsatisfactory.

6. Incentives/Disincentives:

The COR makes an annual report on contractor performance Contractor Performance Assessment Reporting System (CPARS) or other annual report. The contractor's failure to achieve a minimum satisfactory performance under the contract/task order, reflected in the COR's annual report, may result in termination of the contract/task order and may also result in the loss of future government contracts/task orders. The contractor's

failure to achieve a minimum satisfactory performance under the contract/task order may result in the non-exercise of any available options, if applicable.

For each item that does not meet acceptable levels, the government may issue a Contract Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the contractor's past performance and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

For fixed-price contracts/orders, in accordance with the inspection of services provisions, the contractor will be incentivized to provide quality products in a timely manner since the government can require the Contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

(End of QASP)

COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Principal Contracting Officer is:

Paul Cofield

paul.b.cofield.civ@us.navy.mil

(757) 443-1454

NOTICE OF INCLUSION OF AN ORGANIZATIONAL CONFLICT OF INTEREST CLAUSE (SEP 2015)

a) This solicitation contains a clause entitled Organizational Conflict of Interest, pursuant to FAR subpart 9.5, which is to be included in any contract to be awarded hereunder. Prospective offerors are requested to furnish with their proposals, information pertaining to any existing contract between the offeror and the companies engaged in furnishing to the United States Government any services or supplies pertaining to the development, production or analysis of any of the weapon systems, equipment or programs identified in the statement of work of this solicitation or listed below, if any, which may have a bearing on any existing or potential conflict of interest within the meaning of the clause in the Schedule. Such information shall include:

1. The identity of the company
2. A description of the work to be performed under the contract with the company or the relationship between the offeror and the company
3. The dollar amount of the contract or any other ownership interest
4. The period of performance
5. A description of the internal control taken by the offeror to avoid potential organizational conflict of interest, and
6. Any other information requested by the Contracting Officer.

b) The basis for including an OCI clause is: that the contractor may gain access to proprietary information of other companies during contract performance.

c) This solicitation contains a clause entitled Organizational Conflict of Interest which is to be included in the contract to be awarded hereunder. The language of this clause is subject to revision, based on questions/concerns raised by prospective offerors to the attention of the Contracting Officer prior to solicitation closing.

ORGANIZATIONAL CONFLICT OF INTEREST (SEP 2015)

(a) Definitions - In this clause:

(i) "Contractor" means the firm signing this contract;

(ii) "System Supplier" means any firm engaged in or having a known or prospective interest in the development, production, or analysis of the weapon system, equipment or program which are identified in the statement of work of this contract.

(iii) "Affiliates" means employees or officers of the contractor and first tier subcontractors involved in the performance of this contract, or in the decision making process concerning this contract.

(iv) "Interest" means organizational or financial interest.

(v) "Term of this Contract" means the period of performance plus any extensions thereto.

(b) Warranty Against Existing Conflicts of Interest

(i) The contractor warrants that it and its affiliates do not have any contracts with or any substantial interest in the system suppliers identified in the statement of work of this contract, other than those disclosed to the Government and listed in the Section L solicitation provision entitled "Notice of Inclusion of an Organizational Conflict of Interest clause."

(ii) The contractor recognizes that during the term of this contract additional weapon system, equipment or programs may be identified and added to the statement of work of this contract as a result of contract modifications. In such event, the contractor agrees to immediately disclose to the Government information concerning any contract or interest between the contractor and its affiliates and any system supplier if the contract or interest arises during the term of this contract.

(iii) The contracting officer shall have the sole discretion to determine whether a potential organizational conflict of interest exists concerning any interest or contract which arises or is identified during the term of this contract. The contracting officer may take such steps as are necessary in the best interest of the Government to eliminate potential conflict of interest.

(c) Restrictions on Contracting

(i) The contractor agrees that during the term of this contract, and for a period of **24 months** thereafter, neither it nor its affiliates shall (1) enter into any contract for supplies, services or materials, related to the work under this contract with the system suppliers; (2) create for themselves any interest in the system suppliers; (3) consult or discuss with the system supplier any aspects of work under this contract; or (4) furnish to the United States Government, either as a prime contractor or as a subcontractor any component of a system it has worked on or had access to under this contract.

(ii) The contractor further agrees that neither it nor its affiliates will conduct a review nor make recommendations under this contract concerning any item which is the product of work performed by the contractor or its affiliates under any other contract.

(iii) To the extent that the contractor or its affiliates are required to create a specification or develop recommendations for future work to be competed under this contract or any other contract, the contractor agrees, that during the term of this contract, and for a period of **24 months** thereafter, that neither it nor its affiliates shall enter any contract action for the performance of work resulting from the specification or recommendations.

(d) Non-Disclosure of Proprietary Data

Certain information of a proprietary nature may be submitted to the Government by a system supplier. While performing under this contract, the prime contractor and any subcontractors may receive this information. The prime contractor and any subcontractors agree to use and examine this information exclusively in the performance of this contract and to take the necessary steps to prevent disclosure of such information to any party outside the Government, as long as it remains proprietary. The contractor and the subcontractors agree to indoctrinate their affiliates who will have access to this information as to the proprietary nature of the information and the relationship under which they have possession of the information. Affiliates will also be informed that they may not engage in any other action, venture or employment where this information will be used for profit of any party other than the party furnishing this information. Additionally, the contractor and subcontractor agree to execute agreements to this effect with companies providing proprietary data for performance under this contract. The contractor and subcontractors will restrict access to proprietary information to the minimum number of employees for performance of this contract.

(e) Government Remedy

The contractor agrees that any breach or violation of the warranties, restrictions, disclosures or non-disclosures set forth in this conflict of interest clause shall constitute a material and substantial breach of terms, conditions, and provisions of the contract and that the Government may, in addition to any other remedy available, terminate the contract for default.

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative(s) (COR) for this contract:

Timothy Burrows

timothy.r.burrows.civ@us.navy.mil

1 (757) 450-9486

(b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

N/A

CONTRACT ADMINISTRATION PLAN (CAP) FOR FIXED PRICE, INDEFINITE DELIVERY, CONTRACTS

In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

- a. All pre-award duties such as solicitation, negotiation and award of contracts.
- b. Any information or questions during the pre-award stage of the procurement.
- c. Freedom of Information inquiries.
- d. Changes in contract terms and/or conditions.
- e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in FAR 42.302, except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The paying office is responsible for making payment of proper invoices after acceptance is documented.

4. The Ordering Officer is responsible for:

- a. Requesting, obtaining and evaluating proposals for orders to be issued.
- b. Select the most advantageous offer to the Government for individual Task Orders in accordance with contract provisions. Determining that the price /estimated cost of the order is fair and reasonable for the effort proposed.
- c. Obligating the funds by issuance of the delivery order/task order.
- d. Authorizing the contractor to begin performance.
- e. Providing subcontract approval.
- f. Monitoring direct costs on orders issued.

NOTE: The PCO and the Ordering Officer may be the same individual, but in no case shall the COR perform the duties of the Ordering Officer.

5. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

(1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract or order. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.

(2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

(1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such as situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

(2) The COR shall monitor the contractor's performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.

(3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping

the PCO advised of progress.

(4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

(1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.

(2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor.

(3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.

(4) Upon completion of all services under the contract, the COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications/Orders Under Indefinite Delivery Contracts.

(1) The COR is responsible (if necessary) for developing the statement of work for tasking orders, change orders, or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

(2) The COR shall provide available and relevant Past Performance information with each request for new Task Orders. The COR shall review and evaluate the contractor's proposal and furnish comments and recommendations

e. Administrative Duties

(1) The COR is responsible for taking appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.

(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.

(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to ensure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor. For contracts where delivery orders are issued, one consolidated report which addresses all actions under the contract may be submitted.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

7. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

a. Identify contractor deficiencies to the COR.

b. Review contract/delivery order deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the

recommendation.

- c. Assist in preparing the final report on contractor performance for the applicable contract/delivery order in accordance with the format and procedures prescribed by the COR.
- d. Identify contract noncompliance with reporting requirements to the COR.
- e. Evaluate the contractor's proposals for specific delivery orders and identify, for the COR, any potential problems, areas of concern, or issues to be discussed during negotiations.
- f. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.
- g. Review invoices for the appropriate mix of types and quantities of labor, materials, and other direct costs, and provide the COR with recommendations to facilitate COR certification of the invoice.
- h. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.
- i. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

- 1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:
 - a. All pre-award information, questions, or data;
 - b. Freedom of Information inquiries;
 - c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
 - d. Arranging the post award conference (See FAR 42.503).

Paul Cofield
paul.b.cofield.civ@us.navy.mil
(757) 443-1454

- 2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

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- 3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.

Not Applicable.

- 4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

DFAS

- 5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:
 - a. Liaison with personnel at the Government installation and the contractor personnel on site;
 - b. Technical advice/recommendations/clarification on the statement of work;
 - c. The statement of work for delivery/task orders placed under this contract.
 - d. An independent government estimate of the effort described in the definitized statement of work;
 - e. Quality assurance of services performed and acceptance of the services or deliverables;
 - f. Government furnished property;
 - g. Security requirements on Government installation;
 - h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
 - i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

Timothy Burrows
timothy.r.burrows.civ@us.navy.mil
1 (757) 450-9486

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

Not Applicable.

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Not Applicable.

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;
- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to the contract type or types covered by this contract and to any limitations on the warrant of the individual placing the orders;
- b. No order shall be placed in excess of \$2,000,000.00 without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of one year, excluding options.

Name: Any Warranted Contracting Officer
Address: 1968 Gilbert Street, Suite 600. Norfolk, VA 23511

ADDITIONAL ORDERING OFFICER WITH AUTHORITY TO ISSUE ORDERS UP TO \$2,000,000

Name: Henry Bijak
Address: Operational Test & Evaluation Force (OPTEVFOR)
7970 Diven Street
Norfolk, VA 23505
(757) 457-6403
Email: henry.j.bijak.civ@us.navy.mil

(End of text)

SECURITY ADMINISTRATION (SOLICITATION) (SEP 2015)

The highest level of security that will be required under this contract is **Top Secret, with SCI eligibility** as designated on DD Form 254 attached hereto and made a part hereof.

The offeror shall indicate the name, address and telephone number of the cognizant security office;

The facilities to be utilized in the performance of this effort have been cleared to **Top Secret** level.

The offeror should also provide the above information on all proposed subcontractors who will be required to have a security clearance.

SECURITY ADMINISTRATION (CONTRACT) (SEP 2015)

The highest level of security required under this contract is **Top Secret, with SCI eligibility** as designated on DD Form 254 attached hereto and made a part hereof.

The Commander, Defense Investigative Service, Director of Industrial Security, _____ **Region**, is designated Security Administrator for the purpose of administering all elements of military security hereunder.